

**BEFORE THE  
FEDERAL MARITIME COMMISSION**

**MARIE CAREW d/b/a/ HOLIDAY SHIPPING,  
Complainant,**

**Vs.**

**MAERSK LINE A/S,  
JOHN DOES,  
Respondents.**

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**DOCKET #:**

**20-17**

**AFFIDAVIT OF MARIE CAREW**

Personally appeared before the undersigned attesting officer, duly authorized by law to administer oaths, Marie Carew, who being duly sworn, on oath states that she is over the age of eighteen (18) years, and has personal knowledge of the facts set forth in this Affidavit or such knowledge is as stated herein, and makes this Affidavit for use as evidence for any and all matters in the above-styled action and all purposes authorized by law.

1. My name is Marie Carew, and I am the Marie Carew named in the herein lawsuit and as the Complainant;
2. I manage and direct all activities of Holiday Shipping, and I have reviewed all the documents maintained in the course of business by Holiday Shipping and other affiliated companies;
3. At all times, Holiday Shipping, through Affiant, operated as an ocean freight forwarder and as appropriately licensed by the Federal Maritime Commission (the "Commission");
4. I was the freight forwarder on four (4) consignments, shipped with Maersk Line A/S under the following containers with the designated bills of lading: SUDU6808042, B/L 965477262; MSKU8180603, B/L 96544009; MSKU8445214, B/L 965751148; and MRKU6064475, B/L 965885829;
5. Per the Declaration of Maersk Line A/S, the four (4) containers remain with the Nigeria Ports Authority (NPA);

6. The container SUDU6808042, designated as B/L 965477262, contains, among others, 2003 Mercedes Benz C230; 2008 Lexus RX350; 2006 Toyota Highlander; and 2008 VW Passat;
7. The container MSKU8180603, designated as B/L 96544009, contains among, others, a used 2005 Toyota 4 Runner; 2005 Toyota 4 Runner; and 2004 Toyota Sienna;
8. The container MRKU6064475, designated as B/L 965885829, contains among, others, a used 2005 Toyota 4 Runner; 2005 Toyota 4 Runner; and 2004 Toyota Sienna;
9. The container MSKU8445214, designated as B/L 965751148, contains, among others, used 2003 Honda Accord; 2005 Ford Escape; and 2003 Acura MDX;
10. On July 27, 2018, the Affiant submitted the Letter of Intent for export and the Shipping Instructions for Container MSKU8445214. The container arrived at the Port of Savannah on the same day. On August 27, 2018, United States Customs and Border Patrol (USCBP) returned the Validated Titles, and the affiant forwarded the same to Maersk Line. On September 4, 2018, the container left the port. The enclosed invoice for demurrage that Maersk Line issued states that the container incurred thirty (30) days of demurrage charges, from 08/06/2018 to 09/04/2018, and for \$5,280.00.
11. The USCBP did not communicate or instruct the Affiant to perform any corrective measures after submitting the Letter of Intent for Export on Container MSKU8445214 on July 27, 2018;
12. The container MRKU6064475, designated as B/L 965885829, contains, among others, 2003 Toyota Sequoia; 2007 Nissan Murano; and 2003 Toyota RAV4;
13. On August 14, 2018, the Affiant submitted the Letter of Intent for export and the Shipping Instructions for Container MRKU6064475. The container arrived at the Port of Savannah on the same day. On September 12, 2018, USCBP returned the Validated Titles, and the Affiant forwarded the same to Maersk Line immediately. It appears that on September 18, 2018, USCBP released the container for shipment.
14. The USCBP did not communicate or instruct the Affiant to perform any corrective measures after submitting the Letter of Intent for Export on Container MRKU6064475 on August 14, 2018;

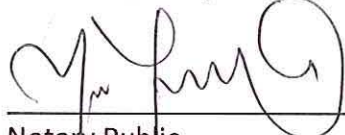
15. On Container #: MSKU8180603, Maersk Line requested a \$3,765 for its Export. This amount included a \$1,375 Container Shifting Origin. In addition, Maersk Line request a \$420 for detention charges of \$420. Affiant has paid the \$3,765 to Maersk in full. See Exhibit;
16. On the Container #: SUDU6808042, Maersk Line requests a \$6,720.00 demurrage payment, which accrued from July 7, 2018, and through September 10, 2018. The USCBP did not communicate or instruct Affiant to perform any corrective measures after submitting the Letter of Intent for Export on the container. However, On August 9, 2018, Maersk wrote to Affiant that the Georgia Ports Authority failed to load some of the items in the container back for non-conformity. Neither Maersk nor the Georgia Ports Authority informed Affiant of the basis for the nonconformity. See Exhibit;
17. Maersk Line A/S claim that it does not know why the four (4) containers remain with the Nigerian Ports Authority (NPA) or the Nigerian Customs is against the series of communications and pattern of business activities between parties;
18. Maersk Line engaged in a continuous and deliberate pattern of refusing to issue the necessary Debit Note to the Consignee in Nigeria to process their consignments through the various government agencies. Maersk Line's reason for the refusal was the demurrage arrears that it claimed the Affiant owed;
19. On October 17, 2018, through her counsel, the Affiant emailed the Maersk Line's agent to request that Maersk Line issue the necessary Debit Note to Consignees at the destination ports. Consignees must obtain this Debit Note to clear their containers through the various government agencies at the destination port. Counsel's email followed several personal efforts of the Affiant to persuade Maersk Line to comply with the Shipping Act;
20. On December 7, 2018, the Affiant, again through her counsel, proposed settlement conditions to Maersk Line to release, among others, two of her containers, *to wit*: Container #: MSKU8445214, and with B/L 965751148; and Container #: MRKU6064475 with B/L 965885829. On December 14, 2018, Maersk Line's agent confirmed that she passed to her principal the settlement proposal. See Exhibit.

21. On December 31, 2018, Obewu Ojebe, for the Affiant, emailed Maersk Line, pleading to the company to release the Container #: MSKU8180603, with B/L 965477262.
- According to Maersk Line, its decision to issue the necessary Debit Note to process the container depends on the Affiant's account;
22. Again, on January 31, 2019, counsel for the Affiant emailed Maersk Line to follow up on the settlement proposal to resolve the demurrage arrears that it claimed the Affiant owed. Maersk Line refused the Affiant's offer and to issue the necessary Debit Note to Consignees to clear their containers through the Nigerian Ports Authority and the Customs;

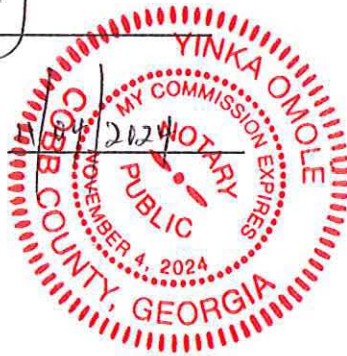
**FURTHER, AFFIANT SAITH NAUGHT**

Marie Carew  
Marie Carew

Sworn to and subscribed before me  
This 3<sup>rd</sup> day of March, 2021

  
\_\_\_\_\_  
Notary Public

My commission expires: 11/04/2024



## EXPORT INVOICE Number: 5254322699 Original

Bill-to Party : HOLIDAY SHIPPING  
1140 S RIVER INDUSTRIAL BLVD SE  
ATLANTA GA 30315

Invoice Date: 09-06-2018  
Due Date: 09-06-2018

Payment terms: Payable immediately

Attention of: CP ACCOUNTS PAYABLE  
On behalf of : HOLIDAY SHIPPING  
1140 S RIVER INDUSTRIAL BLVD SE  
ATLANTA GA 30315

Our Contact: Tagana, Joan Joy C.  
Our Telephone: 1-18007905277

Customer No : US00080221

Maersk Agency U.S.A., Inc. as agent for carrier Maersk Line A/S  
Esplanaden 50, DK 1263 Copenhagen K, Denmark.  
VAT number DK53139655

### Total Amount Due

| Condition              | Rate   | Base Value | Total(USD)      |
|------------------------|--------|------------|-----------------|
| Net value              |        |            | 3,765.00        |
| 0% Non EU services VAT | 0.00 % | 3,765.00   | 0.00            |
| <b>Amount Due</b>      |        |            | <b>3,765.00</b> |

### Bill of Lading Number: 965544009

POL: Savannah Place of Receipt: Atlanta Vessel/Voyage: MSC RITA/833E  
POD: Tin Can Island Place of Delivery: Tin Can Island  
ETD: 05-Sep-2018 ETA: 10-Oct-2018

| Description of Charges    | Qty   | UoM | Curr | Unit Price | ROE     | Total(USD)      |
|---------------------------|-------|-----|------|------------|---------|-----------------|
| Basic Ocean Freight       | 1.000 | CNT | USD  | 2,190.00   | 1.00000 | 2,190.00        |
| Container Shifting Origin | 5.000 | CNT | USD  | 275.00     | 1.00000 | <u>1,375.00</u> |
| Emergency Bunker Fee      | 1.000 | CNT | USD  | 120.00     | 1.00000 | 120.00          |
| Low Sulphur Surcharge     | 1.000 | CNT | USD  | 80.00      | 1.00000 | 80.00           |
| <b>Total Due:</b>         |       |     |      |            |         | <b>3,765.00</b> |

| No | Container No           | Service | PCD         |
|----|------------------------|---------|-------------|
| 1  | MSKU8180603 40/9'6/DRY | CY/CY   | 17-Jul-2018 |



**Original**

**DETENTION INVOICE Number: 5254154972**

Bill-to Party : HOLIDAY SHIPPING  
1140 S RIVER INDUSTRIAL BLVD SE  
ATLANTA GA 30315

Invoice Date: 07-24-2018  
Due Date: 07-24-2018

Payment terms: Payable immediately

Attention of: DET/DEM ACCOUNTS PAYABLE  
On behalf of: HOLIDAY SHIPPING  
1140 S RIVER INDUSTRIAL BLVD SE  
ATLANTA GA 30315

Our Contact: Tagana, Joan Joy C.  
Our Telephone: 1-18007905277

Customer No : US00080221

Maersk Agency U.S.A., Inc. as agent for carrier Maersk Line A/S  
Esplanaden 50, DK 1263 Copenhagen K, Denmark.  
VAT number DK53139655

**Total Amount Due**

| Condition              | Rate   | Base Value | Total(USD)    |
|------------------------|--------|------------|---------------|
| Net value              |        |            | 420.00        |
| 0% Non EU services VAT | 0.00 % | 420.00     | 0.00          |
| <b>Amount Due</b>      |        |            | <b>420.00</b> |

Bill of Lading Number: 965544009 Your Reference:

| Origin | Destination | Vessel | Voyage |
|--------|-------------|--------|--------|
|--------|-------------|--------|--------|

Place of Delivery: Tin Can Island

ETD: --

ETA: --

| Description | Container   | Type   | Start      | End        | Qty | UoM | ROE     | Total(USD) |
|-------------|-------------|--------|------------|------------|-----|-----|---------|------------|
| Freetime    |             |        | 07-05-2018 | 07-14-2018 | 10  |     |         |            |
| Per Diem    | MSKU8180603 | 40 DRY | 07-15-2018 | 07-17-2018 | 1   | CNT | 1.00000 | 420.00     |

Tier 1: 3 Days x \$140.00 = \$420.00

Loc: ATLBT - Line: W4 - Contract: 4227744

Billable Days: 3

**Total Due: 420.00**

\* Service Contract Number:

\* Pay, View, Print, Dispute your invoices in the MyFinance section of [my.maerskline.com](http://my.maerskline.com)

\* SmartPay (bank payment) and Credit Card (Visa & MasterCard) accepted in MyFinance

\* Contact: [MyFinance@Maersk.com](mailto:MyFinance@Maersk.com) for assistance

\* Disputes can be emailed to [disputes@maersk.com](mailto:disputes@maersk.com)

# MAERSK LINE

Maersk Agency U.S.A., Inc.  
9300 Arrowpoint Boulevard  
Charlotte NC 28273-8136

## Original DEMURRAGE INVOICE Number: 5254351658

Bill-to Party : HOLIDAY SHIPPING  
1140 S RIVER INDUSTRIAL BLVD SE  
ATLANTA GA 30315

Invoice Date: 09-13-2018  
Due Date: 09-13-2018

Payment terms: Payable immediately

Attention of: DET/DEM ACCOUNTS PAYABLE  
On behalf of : HOLIDAY SHIPPING  
1140 S RIVER INDUSTRIAL BLVD SE  
ATLANTA GA 30315

Our Contact: Tagana, Joan Joy C.  
Our Telephone: 1-18007905277

Customer No : US00080221

Maersk Agency U.S.A., Inc. as agent for carrier Maersk Line A/S  
Esplanaden 50, DK 1263 Copenhagen K, Denmark.  
VAT number DK53139655

### Total Amount Due

| Condition              | Rate   | Base Value | Total(USD)      |
|------------------------|--------|------------|-----------------|
| Net value              |        |            | 6,720.00        |
| 0% Non EU services VAT | 0.00 % | 6,720.00   | 0.00            |
| <b>Amount Due</b>      |        |            | <b>6,720.00</b> |

Bill of Lading Number: 965477262 Your Reference: 965477262

| Origin | Destination | Vessel | Voyage |
|--------|-------------|--------|--------|
|--------|-------------|--------|--------|

| Description   | Container   | Type | Start      | End        | Qty | UoM | ROE     | Total(USD) |
|---------------|-------------|------|------------|------------|-----|-----|---------|------------|
| Freetime      |             |      | 07-07-2018 | 07-14-2018 | 0   |     |         |            |
| Demurrage Fee | SUDU6808042 |      | 07-15-2018 | 09-10-2018 | 1   | CNT | 1.00000 | 6,720.00   |

Activity Location: USSAVGC

Container SUDU6808042 incurred 38 days Demurrage at USSAVGC from 07/15/2018 to 09/10/2018 in the amount of \$6720 Day 1- 4 = 150\*4 = \$600 and From Day 5 = \$180 per day.

**Total Due: 6,720.00**

\* Service Contract Number:  
\* Pay, View, Print, Dispute your invoices in the MyFinance section of my.maerskline.com  
\* SmartPay (bank payment) and Credit Card (Visa & MasterCard) accepted in MyFinance  
\* Contact: MyFinance@Maersk.com for assistance

*Ameline*

From: Ling Chen <Joshua.Lippincott@maersk.com>

To: bking@aol.com

Cc: Ellsworth, Ashlee <ASHLEE.ELLSWORTH@maersk.com>; Campbell, Aisha <aisha.campbell@maersk.com>; NAMCUSVEH <NAMCUSVEH@maersk.com>

Subject: MSKU9727763//SUDU6808042 Vehicle(s) left on Terminal USSAVGC

Date: Thu, Aug 9, 2018 9:00 am

Attachments: Delivery Instructions for Cargo at Whs 83.docx (61K)

Hi Marie,

965690350//MSKU9727763 & 965477262// SUDU6808042 Maersk has been notified by Georgia Port Authority in Savannah that vehicle(s) were not loaded as scheduled following a Customs examination. Georgia Port Authority has stated that due to nonconformity and physical constraints the below stated Vehicle(s) were not reloaded following an examination; Maersk is not responsible for USCBP/GPA regulations and/or protocol.

We are providing the following options for those customers whose vehicles were not loaded due to the USCBP examination:

**Option 1:** Create a new booking for the next available vessel with space and have the Georgia Port Authority load the container. The vehicle(s) left on Terminal would be loaded into a separate container and a new BL would be manifested. The shipper will be responsible for all applicable charges, these include but are not limited to; standard contracted booking charges and loading fees. Loading fees will need to be quoted by GPA.

**Option 2:** Customers can pick up the vehicles at Georgia Port Authority Warehouse 83. Customer will need to contact GPA to arrange the pick-up appointment. Drivers must have TWIC Card in order to access the Port.

**Vehicles on Terminal:**

| Container   | Vehicle Description   | VIN #              |
|-------------|-----------------------|--------------------|
| MSKU9727763 | GRY VOLKSWAGON PASSAT | WVWUAU73C06P093261 |
|             | BLK NISSAN ALTIMA     | 1N4BL21EX7C117363  |
| SUDU6808042 | SILVER LEXUS RX350    | 2T3HK31U88C066180  |
|             | GRY TOYOTA HIGHLANDER | GP21A360113362     |

Please let us know how you would like to proceed with these vehicles.

Kind regards,

Joshua Lippincott  
Export Customer Service  
Auto Desk

9300 Arrowpoint Blvd.

Charlotte, NC 28273



**MAERSK**  
LINE

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